

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carter Salis	Team: Squad #4	CCRB Case #: 201903277	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 04/14/2019 4:39 PM	Location of Incident: Third Avenue Bridge	Precinct: 25	18 Mo. SOL 10/14/2020	EO SOL 5/31/2021	
Date/Time CV Reported Tue, 04/16/2019 2:06 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/16/2019 2:06 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Jaeger	29772	950622	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Christophe Jaeger	Abuse: Police Officer Christopher Jaeger stopped the vehicle in which § 87(2)(b) was an occupant.	

Case Summary

On April 16, 2019, § 87(2)(b) called the CCRB and filed this complaint.

On April 14, 2019, at approximately 4:39 PM, PO Christopher Jaeger of the 28th Precinct stopped § 87(2)(b) who was riding his Class B motorcycle, on the Manhattan side of the Third Avenue Bridge as part of a motorcycle safety checkpoint (**Allegation A: Abuse of Authority, § 87(2)(g)**). § 87(2)(b) provided PO Jaeger with his driver license and vehicle registration. PO Jaeger issued § 87(2)(b) two summonses: § 87(2)(b)

There is no known video evidence in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: PO Christopher Jaeger stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated (BR 01) that he was riding his Class B motorcycle, which was legally registered and insured, across the Third Avenue Bridge. § 87(2)(b) observed a marked police vehicle, surrounded by orange cones, and with flashing turret lights. There were eight to ten uniformed officers spread out across the Third Avenue Bridge, and § 87(2)(b) observed at least five motorcycles get pulled over by different officers. § 87(2)(b) did not see any car being stopped and he did not see officers wave any motorcycle through the checkpoint. PO Jaeger pulled § 87(2)(b) over on the Manhattan side of the bridge and requested his driver license and registration, which § 87(2)(b) provided. PO Jaeger walked to a marked police vehicle, where he remained for approximately twenty minutes, after which he returned and issued § 87(2)(b) two summonses.

The Vehicle Checkpoint Form (BR 03) for Checkpoint Number 2019-010, confirmed that the 28th Precinct was conducting a Motorcycle Safety Checkpoint on the Third Avenue Bridge between 1:00 PM and 5:00 PM on April 14, 2019. PO Jaeger is identified as one of ten uniformed officers that was assigned to the vehicle checkpoint. Officers were instructed to stop every motorcycle.

According to NYPD Patrol Guide Procedure 221-16 (BR 04), during a vehicle checkpoint, police officers may stop motorists without an articulated individualized suspicion, so long as vehicle stops are conducted in a non-arbitrary manner as directed by the command officer on a Vehicle Checkpoint Form.

§ 87(2)(b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 05).
- PO Christopher Jaeger has been a member-of-service for seven years and has been a subject in three CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On May 6, 2019, a FOIL request was submitted to the Office of the Comptroller to determine if any Notice of Claim had been filed in relation to this incident. The requested information will be added to the case file upon receipt.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Squad No.: Squad 4

Investigator:	_____	Investigator Carter Salis	05/07/2019
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date